Legal aspects of IT security
Master in cybersecurity

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Terrorism and cybersecurity

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Terrorism and cybersecurity

I. Main online offences
II. Means of action

I. Main online offences

Some terrorist offences can be committed online :

1. Illegal system interference and illegal data interference for terrorist purposes
2. Public provocation to commit a terrorist offence
3. Recruitment for terrorism
4. Training for terrorism
5. Apology for terrorism

I. Main online offences

Pertinent sources :

- Directive (EU) 2017/541 of the European Parliament and of the Council of 15 March 2017 on combating terrorism and replacing Council Framework Decision 2002/475/JHA and amending Council Decision 2005/671/JHA, *J.O.*, 31 March 2017, L 88 ;
- Belgian criminal code, articles 137 and following

I. Main online offences

! As a reminder :

To exist, a criminal offence must meet three constituent elements :

- Legal element
- Material element
- Mental element

I. Main online offences

1. Illegal system interference and illegal data interference for terrorist purposes

- **Legal element**

"*Member States shall take the necessary measures to ensure that the following intentional acts, as defined as offences under national law, which, given their nature or context, may seriously damage a country or an international organisation, are defined as terrorist offences where committed with one of the aims listed in paragraph 2 :*

i) illegal system interference, as referred to in Article 4 of Directive 2013/40/EU of the European Parliament and of the

Council (1) in cases where Article 9(3) or point (b) or (c) of Article 9(4) of that Directive applies, and illegal data

interference, as referred to in Article 5 of that Directive in cases where point (c) of Article 9(4) of that Directive applies"

(Directive, art. 3, §1, i))

I. Main online offences

1. Illegal system interference and illegal data interference for terrorist purposes

- **Material element**

- Illegal system interference = “seriously hindering or interrupting the functioning of an information system by inputting computer data, by transmitting, damaging, deleting, deteriorating, altering or suppressing such data, or by rendering such data inaccessible, intentionally and without right”

- Illegal data interference = “deleting, damaging, deteriorating, altering or suppressing computer data on an information system, or rendering such data inaccessible, intentionally and without right”

(Directive 2013/40/EU of the European Parliament and of the Council of 12 August 2013 on attacks against information systems and replacing Council Framework Decision 2005/222/JHA, *J.O.*, 14 August 2013, L 218, art. 4 and 5)

I. Main online offences

1. Illegal system interference and illegal data interference for terrorist purposes

- **Mental element**

One of these 3 aims :

- seriously intimidating a population;

- unduly compelling a government or an international organisation to perform or abstain from performing any act;

- seriously destabilising or destroying the fundamental political, constitutional, economic or social structures of a country or an international organisation.

I. Main online offences

1. Illegal system interference and illegal data interference for terrorist purposes

- **Contextual element**

Acts given their nature or context, may seriously damage a country or an international organisation

I. Main online offences
2. Public provocation to commit a terrorist offence

- **Legal element**

"*Member States shall take the necessary measures to ensure that the distribution, or otherwise making available by any means, whether online or offline, of a message to the public, with the intent to incite the commission of one of the offences listed in points (a) to (i) of Article 3(1), where such conduct, directly or indirectly, such as by the glorification of terrorist acts, advocates the commission of terrorist offences, thereby causing a danger that one or more such offences may be committed, is punishable as a criminal offence when committed intentionally*"

(Directive, art. 5)

I. Main online offences
2. Public provocation to commit a terrorist offence

- **Material element**

- Distribution or making available to the public

- A message

- Causing a danger that one or more terrorist offences may be committed

I. Main online offences

2. Public provocation to commit a terrorist offence

- **Mental element**

Special intent : intent to incite the commission of some terrorist offences

I. Main online offences
3. Recruitment for terrorist

- **Legal element**

"Member States shall take the necessary measures to ensure that soliciting another person to commit or contribute to the commission of one of the offences listed in points (a) to (i) of Article 3(1), or in Article 4 is punishable as a criminal offence when committed intentionally".

(Directive, art. 6)

I. Main online offences
3. Recruitment for terrorist

- **Material element**

- Recruiting = enlisting recruits or getting someone to join a group

- To commit a terrorist offence or to join a terrorist group

I. Main online offences
3. Recruitment for terrorist

- **Material element**

Special intent : intent that the recruit will commit terrorist offences or will join a terrorist group

I. Main online offences
4. Training for terrorism

- **Legal element**

"*Member States shall take the necessary measures to ensure that providing instruction on the making or use of explosives, firearms or other weapons or noxious or hazardous substances, or on other specific methods or techniques, for the purpose of committing, or contributing to the commission of, one of the offences listed in points (a) to (i) of Article 3(1), knowing that the skills provided are intended to be used for this purpose, is punishable as a criminal offence when committed intentionally*" (Directive, art. 7)

"*Member States shall take the necessary measures to ensure that receiving instruction on the making or use of explosives, firearms or other weapons or noxious or hazardous substances, or on other specific methods or techniques, for the purpose of committing, or contributing to the commission of, one of the offences listed in points (a) to (i) of Article 3(1) is punishable as a criminal offence when committed intentionally*" (Directive, art. 8)

I. Main online offences
4. Training for terrorism

- **Material element**

- An instruction

- Providing or receiving

I. Main online offences
4. Training for terrorism

- **Mental element**

Special intent : instructions are provided/received with the intent that a terrorist offence will be commit

I. Main online offences
5. Apology for terrorism

Neither in the EU legal Framework nor in the Belgian legal Framework

BUT : New criminal Code in Belgium

Apology = approval, justification or gross minimisation of terrorism

II. Means of action

1. Data collection
2. Withdrawal of terrorist content published online
3. Data security policies

II. Means of action
1. Data collection

-> See course on criminal investigations in the digital world

Reminder: striking a balance in criminal procedure

Efficiency of the investigation - respect for fundamental rights and freedoms

2 risks for data :

- mass surveillance*
- preventive criminal law

II. Means of action
1. Data collection

Mass surveillance?*

Example of passenger data collection = mass surveillance (>< targeted surveillance)

Mass surveillance "is of vital importance to the Contracting States in detecting threats to their national security" and is an "essential means of action" because terrorists, in particular, "have increasingly sophisticated capabilities to evade detection by conventional means".

(European Court of Human Rights (Grand Chamber), *Big Brother Watch and Others v. United Kingdom* judgment of 25 May 2021).

BUT necessary safeguards!

II. Means of action
2. Withdrawal of terrorist content published online

Regulation (UE) 2021/784 of the European Parliament and of the Council of 29 April 2021 on addressing the dissemination of terrorist content online, *J.O.*, L 172, 17 May 2021

-> Aims to combat online terrorist propaganda

II. Means of action
2. Withdrawal of terrorist content published online

- Terrorist content = « *material that incites or solicits a person to commit a terrorist offence referred to in Article 3(1)(a) to (i) of Directive (EU) 2017/541, solicits a person(s) to participate in the activities of a terrorist group, provides instructions concerning the manufacture or use of explosives, firearms or other weapons, or noxious or dangerous substances, or concerning other specific methods or techniques in order to commit or contribute to the commission of a terrorist offence or who constitutes a threat as to the commission of a terrorist offence* »

- Dissemination to the public = « *make available to a potentially unlimited number of people, at the request of a content provider* »

II. Means of action
2. Withdrawal of terrorist content published online

! content disseminated "for educational, journalistic, artistic or research purposes, or for the purposes of preventing or combating terrorism, including material which represents the expression of polemical or controversial views in the context of public debate, is not considered to be content of a terrorist nature".

II. Means of action

2. Withdrawal of terrorist content published online

- Withdrawal order by the competent national authority
- Withdrawal or blocking by the hosting service provider
- Information to the content provider

II. Mains of action
3. Data security policies

-> See the course on the security obligation under the GDPR

Any questions?

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Thanks for your attention!

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